mitsogo

Separation Policy

Document Control

Information:

Title	Classification	Version	Status
Separation Policy	Internal Document	1.0	Approved

Revision History:

Version	Authors	Approved by	Issue date	Status
1.0	Bhuvaneshwari Neelam	Shree Vibavana Keerthana B – Legal	15-01-2026	Approved

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SEPARATION POLICY

1. Introduction

This Separation Policy applies to all employees of **MITSOGO** regardless of their role, tenure, or employment status, including full-time, part-time, temporary, and contract employees. The policy outlines the procedures and responsibilities of both the employer and the employee during a separation to ensure a smooth transition.

2. Scope

This policy applies to all employees of **MITSOGO** including full-time, part-time, probationary employees, Contract employees and interns. It encompasses all scenarios under which an employment relationship may be terminated, providing clear guidelines to both employees and management.

3. Purpose

The purpose of this Separation Policy is to provide a clear and consistent framework for managing employee separations, ensuring fair treatment for all employees. It aims to ensure legal compliance with labor laws, minimize disruptions to business operations, and support departing employees through the transition process. The policy also seeks to maintain employee dignity and respect, protect the organization’s assets and sensitive information, and gather feedback to inform organizational improvements. By handling separations professionally and ethically, the policy helps manage the company's reputation and prevents negative impacts due to poorly managed separations. Overall, it ensures separations are conducted efficiently, respectfully, and in compliance with legal standards, protecting both the organization's interests and employees' rights.

4. Resignation

Resignation refers to the voluntary decision by an employee to leave their position within the company. At Mitsogo, resignations are managed through our dedicated HRMS, to ensure a streamlined and transparent process.

4.1. Process for Resignation:

4.1.1. Submission of Resignation Notice: Employees intending to resign must submit their resignation notice through the HRMS platform. This notice should comply with the notice period specified in their employment contract.

Notice Period Guidelines

- **Lateral / Campus / Off-Campus Employees**

  During Probation: 1 month's notice from the date of resignation
  After Probation: 2 months' notice from the date of resignation

  Fixed Term Contract

- **6 Months/1year**

  During Probation: 1 month notice from the date of resignation
  After Probation: 1 month notice from the date of resignation

- **2-Year**

  During Probation: 1 month's notice from the date of resignation
  After Probation: 2 months' notice from the date of resignation

4.1.2. Acceptance of Resignation: Upon submission, the resignation notice will be promptly reviewed and acknowledged by the employee's immediate supervisor and the HR department through HRMS. This acknowledgment signifies the commencement of the notice period, effective immediately from the date of resignation notice submission. Employees will receive confirmation of their resignation submission along with the start date of their notice period.

Approval of the last working day is determined by the employee's reporting manager based on business requirements. Even if the employee requests early relieving, the final decision will be made by the immediate manager, after which HR will process the resignation.

4.1.3. Notice Period Adjustments: If the last working day falls on a weekend or holiday, the previous working day will be considered as the last working day. In case a notice period employee avails leave during their notice period, the notice period timeline will be extended accordingly to accommodate the duration of the leave.

If an employee on notice period takes unauthorized leave, the company reserves the right to terminate their employment immediately.

If an employee demonstrates any behavioral or disciplinary issues during the notice period, such as violations of company policies or unacceptable conduct, the company reserves the right to terminate their employment with immediate effect.

4.1.4. On-Notice Period Clearance: To ensure a smooth transition and avoid last-minute issues, the HR department will initiate an exit task in HRMS once the resignation is formally accepted. This process, managed through HRMS, includes scheduling necessary clearances, exit interviews, and handover procedures. The initiation of these tasks is triggered with a one-week deadline for completion. This systematic approach in HRMS ensures that all required steps are addressed during the notice period, providing a hassle-free and organized exit process for both the employee and the company.

4.1.5. Handover Process: Employees are required to complete a thorough handover of their responsibilities. This includes updating relevant documentation and ensuring a smooth transition of duties to their successor or team members. The handover details must be documented in HRMS.

4.1.6. No Due Clearance: Employees must obtain a no due clearance from all relevant departments, ensuring that all company assets have been returned and any outstanding obligations have been settled. This clearance must be obtained a day before their last working day. HRMS will track the completion of this process to ensure all necessary steps are completed on time.

4.1.7. Financial Clearance: Employees must also secure financial clearance from the Finance Department. This includes the reconciliation of any advances, loans, or other financial transactions. The status of financial clearance will be managed and updated in HRMS.

4.1.8. Profit Sharing Plan: If an employee has received a PSP in the current year cycle and resigns within six months from the date of receiving it, the PSP amount must be returned by the employee during the notice period. This amount cannot be adjusted in the full and final settlement.

4.1.9. Buyout Option: Employees have the option of buying out their notice period, based on the role and nature of the job. This decision shall be made in concurrence with the reporting manager and HR. The calculation for the buyout amount will be conducted by HR in collaboration with the Finance Department. The buyout amount must be recovered from the employee before their departure or adjusted in the full and final settlement. This flexibility allows for necessary adjustments to ensure business continuity and the smooth transition of responsibilities.

4.1.10. Final Settlement: The final settlement process, including the calculation of any outstanding dues, unused leave encashment, and other financial matters, will be managed through HRMS. Employees will be able to track the status of their final settlement in real time. The final settlement will be cleared from the employee's date of relieving in the next payroll cycle, typically by the 5th of the following month. And the same will be sent to their personal email IDs

Return of Company Property: All company property, including laptops, access cards, and any other equipment, must be returned as part of the separation process. HRMS will list all items issued to the employee and facilitate the return process. If there is any damage to or delay in the return of company property, necessary adjustments will be made either in the full and final settlement. If the cost exceeds the final settlement amount, the employee will be asked to incur the cost and settle the dues before their exit.(Refer Asset Policy).
Additionally, any unused business cards must be handed over to the operations department for proper disposal or reallocation.
For ID cards and Tech Park access cards, employees must submit these on their last working day. If an employee has lost their ID card, they must send an email to the Operations Team to obtain concurrence for the lost ID card. For employees who cannot physically submit their ID cards and access cards, they can courier these items to the company's office address. The employee must ensure the items reach the company, and the receipt of these items will be confirmed via email.

4.1.11. Exit Interview: The HR department will schedule an exit interview through HRMS. This interview aims to gather feedback from the resigning employees about their experience at Mitsogo and understand their reasons for leaving. The insights gained from these interviews help the company improve its workplace environment and employee retention strategies. All

employees exiting the company are required to complete an exit survey. The exit survey must be completed as part of the exit process before the employee's final clearance.

4.1.12. Exit Formalities: Once all formalities are completed, including the exit interview and return of company property, the HR department will finalize the resignation process on HRMS. The employee will receive a formal acceptance of their resignation and a service letter. The HR department must send a deactivation access request to the IT department on the next business day following the employee's exit. This request ensures that the employee's access to company systems and facilities is promptly revoked to maintain security and data integrity.

4.1.13. Revoking Resignation: Employees who wish to revoke their resignation may do so within two weeks from the date they initially submitted their resignation notice. The revocation request must be submitted through HRMS and will be subject to approval based on current business needs and management discretion.

4.1.14. Retaining Employee: Employees who wish to revoke their resignation may do so within two weeks from the date they initially submitted their resignation notice.

5. Notice Period Policy: Do's and Don'ts

5.1. Do's During Notice Period

- Maintain Professionalism: Continue to perform duties professionally until the last day.
- Complete Handover: Ensure a thorough handover of responsibilities to successors.
- Assist in Training: Offer guidance to colleagues taking over tasks.
- Attend Exit Interviews: Participate in HR exit interviews to provide feedback.
- Communicate Effectively: Keep supervisors and teams informed about ongoing tasks.
- Prepare Documentation: Organize project-related documentation for a smooth transition.
- Follow Company Policies: Adhere to company policies and procedures during notice period.

5.2. Don'ts During Notice Period

- Neglect Responsibilities: Avoid reducing productivity or neglecting duties.
- Share Confidential Information: Refrain from disclosing sensitive company information.
- Engage in Conflict: Avoid conflicts with colleagues or management.

- Breach Confidentiality: Maintain confidentiality regarding departure reasons.
- Neglect Handover Process: Ensure comprehensive handover without withholding information.
- Badmouth Company: Refrain from making negative comments about the company.
- Take Unauthorized Leave: Avoid taking leave without prior approval during notice period.
- Disrupt Operations: Ensure departure does not disrupt normal operations.

6. Types of Termination

6.1. Performance Improvement Plan (PIP) Termination

Termination under a Performance Improvement Plan (PIP) occurs when an employee fails to meet the performance standards set by the company, despite being given an opportunity to improve. The PIP is a structured process that outlines specific areas for improvement, provides necessary support, and sets clear timelines for achieving the desired performance levels. (Refer PIP Policy)

6.1.1. Process:

- When performance issues are identified, the immediate supervisor shall initiate a PIP in consultation with the HR department.
- The manager must conduct a detailed one-on-one meeting with the employee, along with HR, to communicate the initiation of the PIP, covering the reason for initiating the plan, its purpose and objectives, the expectations and goals during the PIP period, the support plans and improvement strategies with timelines, and the possible outcomes of the PIP.
- After the one-on-one meeting, the manager shall initiate the PIP in HRMS. The standard PIP duration is 30 days.
- Managers must conduct periodic review meetings (weekly or bi-weekly) to assess progress against goals, provide feedback and support, set realistic expectations, and document all discussions in Keka's PIP activity tab, with additional meetings scheduled as required.
- All key points discussed during PIP meetings must be recorded in the PIP activity tab in Keka.
- Based on progress or deviations observed during reviews, the manager may either extend the PIP for a maximum of two weeks (only once) or take a final decision to retain or terminate the employee's employment.

- If the employee is retained post-PIP, they cannot be placed under PIP again for the next six months. If performance or behavior issues arise during this period, termination may be initiated directly.
- If performance does not improve during reviews, the manager may decide to terminate employment at any point during the 30-day PIP period. Termination procedures shall then be initiated.
- The PIP period shall be considered as part of the notice period. Any remaining notice period will be compensated in lieu, as per Clause 4.1.1 of the standard notice period policy.

6.2. Contract Termination

Contract termination occurs when an employment contract reaches its end date or is terminated early due to specific conditions outlined in the contract.

6.2.1. Process:

- End of Contract: Employment ends automatically on the contract's end date unless a renewal or extension is agreed upon.
- Early Termination: If the contract is terminated early, reasons such as project completion, lack of funding, or mutual agreement are documented.
- Notification: Employees are notified in writing about the termination of their contract, and any contractual obligations, such as notice periods or severance, are honored.

6.3. Disciplinary Termination

Disciplinary termination occurs when an employee is terminated due to violations of company policies, misconduct, or other actions that warrant disciplinary measures. Disciplinary termination occurs when an employee is terminated due to violations of company policies, misconduct, or other actions that warrant disciplinary measures.

6.3.1. Process:

- Investigation: When a policy violation or misconduct is reported, an investigation is conducted by the HR department.
- Documentation: All findings and evidence are documented. The employee is given an opportunity to respond to the allegations.

- Decision: Based on the investigation, a decision is made. If termination is warranted, the employee is informed in writing, outlining the reasons for termination and any applicable severance or benefits.

6.4. Redundancy or Layoff

Termination due to redundancy or layoff occurs when positions are eliminated due to organizational restructuring, economic downturns, or other business needs. Employees who are laid off due to redundancy will receive two months' salary as a compensation benefit. This payment is intended to provide financial support during the transition period and help employees manage their immediate needs following their separation from the company.

6.4.1. Process:

- Identification: Positions identified for redundancy are determined based on business needs.
- Notification: Affected employees are notified as soon as possible, with explanations and support options, such as outplacement services or severance packages.

6.5. Mutual Agreement

Termination by mutual agreement occurs when both the employee and the employer agree to end the employment relationship.

6.5.1. Process:

- Agreement: Both parties discuss and agree on the terms of termination.
- Transition: The employee is given support to transition out of the company, as agreed upon.

7. Conclusion

The separation policy ensures that all terminations are handled with fairness, transparency, and respect for all parties involved. By clearly defining the types and processes of termination, **MITSOGO** aims to maintain a professional and supportive work environment, even during challenging transitions.

Mitsogo reserves the rights to change/ amend the above rules at their discretion and on par with government regulations and rules from time to time which will be communicated to employees.